



Commonwealth of Kentucky

CONTRACT

Document Number:	SC	094	2700000420	Version:	1
Record Date:					
Document Description:	Oldham County Fiscal Court Project 27-225				
Cited Authority:	KRS65.7631(4) CMRS Grant Funds				
Reason for Modification:					

Issuer Contact:	
Name:	Mark Gaus
Phone:	502-564-3911
E-mail:	Mark.Gaus@ky.gov

Vendor Name:	Vendor No.	KY0035564
OLDHAM COUNTY FISCAL COURT		
Vendor Contact		
Name: MELISSA HORN		
Phone: 502-222-9357		
E-mail: MHORN@OLDHAMCOUNTYKY.GOV		
100 W JEFFERSON ST		
SUITE 4		
LAGRANGE	KY	40031

Shipping Information:	Billing Information:
	Kentucky 911 Services Board
	200 Mero Street
	Frankfort
	KY
	40601

Effective From: 08/15/2026		Effective To: 01/31/2028					
Line Item	Delivery Date	Quantity	Unit	Description	Unit Price	Contract Amount	Total Price
1		0.00000		Oldham County Fiscal Court Project 27-225	\$0.000000	\$63,180.00	\$63,180.00

Extended Description:
Effective Date: August 15, 2026 Expiration Date: January 31, 2028. Kentucky 911 Services Board Grant PROJECT #27-225.
Scope of Work: Oldham County Fiscal Court Mobile Phone System.

Items of purchase by the grant recipient shall include any allowable expenses outlined in the terms and conditions of this contract. All purchases must comply with the Kentucky 911 Services Board Grant allowable expenses as outlined in the terms and conditions of this contract and governed by statute KRS 65.7631(4)(d) and regulation 202 KAR 6:090.

Any further purchases differing from the aforementioned must be submitted and approved by the Kentucky 911 Services Board.

TOTAL CONTRACT AMOUNT	\$63,180.00
------------------------------	--------------------

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 2
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

Memorandum of Agreement

This Memorandum of Agreement (MOA) is entered into, by and between the Commonwealth of Kentucky, KENTUCKY OFFICE OF HOMELAND SECURITY ("the Commonwealth") and OLDHAM COUNTY FISCAL COURT ("the Contractor") to establish an agreement for the KENTUCKY 911 SERVICES BOARD 2026 REIMBURSEMENT GRANT. This MOA is effective from **August 15, 2026**, through **January 31, 2028**.

Scope of Services:

OLDHAM COUNTY FISCAL COURT MOBILE PHONE SYSTEM #27-225

Pricing:

Grant Award Project \$63,180.00

Grant Terms and Conditions

1. **Americans with Disabilities Act of 1990 (ADA):** *The grantee must comply with all requirements of the Americans with Disabilities Act of 1990 (ADA), as applicable.*
2. **Availability of CMRS Funds:** *This grant award is contingent upon availability of funds in the CMRS Grant Fund as received pursuant to KRS 65.7631.*

3. **Bidding Requirements:** *The grantee shall comply with the Kentucky Model Procurement Code (KRS Chapter 45A). According to Chapter 45A.385, the grantee may use the small purchase procedures (45A.100) for any contract for which determination is made that the aggregate amount of the contract does not exceed twenty thousand dollars (\$20,000). For items and contracts over \$20,000, the grantee must competitively bid the project according to the agency's procurement guidelines or purchase the items from the Kentucky State price contract.*

4. **Bonding:** *It is strongly recommended that all officials identified on this grant who have authority to obligate, expend or approve expenditures be bonded for an amount no less than the total amount of the grant.*

5. **Civil Rights Compliance and Notification of Findings:** *The grantee will comply with the nondiscrimination requirements of Title VI of the Civil Rights Act of 1964, as amended; Section 504 of the Rehabilitation Act of 1964, as amended; Subtitle A, Title II of the Americans with Disabilities Act (ADA) (1990); Title IX of the Education Amendments of 1972; the Age Discrimination Act of 1975; Department of Homeland Security's Non-Discrimination Regulations, 28 CFR Part 42, Subparts C,D,E, and G; and Department of Homeland Security's regulations on disability discrimination, 28 CFR Part 35 and 39 and KRS Chapter 344. In the event a Federal or State Court, Federal or State administrative agency, or the grantee or Contractor makes a finding of discrimination after a due process hearing on the grounds of race, color, religion, national origin, sex, or disability against a recipient of funds, the grantee or Contractor will forward a copy of the findings to the Kentucky 911 Services Board who will, in turn, submit the findings to the Kentucky Office of Homeland Security for referral to the Department of Homeland Security and the Office of Justice Programs' Office of Civil Rights.*

Compliance Agreement: *The grantee agrees to abide by all Terms and Conditions including "Special Conditions" placed upon the grant award by the Kentucky 911 Services Board. Failure to comply could result in a "Stop Payment" being placed on the grant.*

7. **Compliance with Section 504 of the Rehabilitation Act of 1973 (Handicapped):** *All recipients of*

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 3
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

public funds must comply with Section 504 of the Rehabilitation Act of 1973. Therefore, the funds recipient pursuant to the requirements of the Rehabilitation Act of 1973 hereby gives assurance that no otherwise qualified handicapped person shall, solely by reason of handicap, be excluded from the participation in, be denied the benefits of or be subject to discrimination, including discrimination in employment, in any program or activity that receives or benefits from federal financial assistance. The recipient agrees it will ensure that requirements of the Rehabilitation Act of 1973 shall be included in the agreements with and be binding on all of its grantees, contractors, subcontractors, assignees or successors.

8. Confidential Information: *Any reports, information, data, etc., given to, prepared or assembled by the grantee under this grant (which the Kentucky 911 Services Board requests to be kept confidential) shall not be made available to any individual or organization by the grantee without prior written approval of the Kentucky 911 Services Board.*

9. Conflict Of Interest: *Personnel and other officials connected with this grant shall adhere to the requirements given below:*

Advice: No official or employee of a state or unit of local government or of non-government grantees/grantees shall participate personally through decision, approval, disapproval, recommendation, the rendering of advice, investigation, or otherwise in any proceeding, application, request for a ruling or other determination, contract, grant, cooperative agreement, claim, controversy, or other particular matter in which these funds are used, where to his knowledge he or his immediate family, partners, organization other than a public agency in which he is serving as officer, director, trustee, partner, or employee or any person or organization with whom he is negotiating or has any arrangement concerning prospective employment, has a financial interest.

Appearance: In the use of these grant funds, officials or employees of state or local units of government and non-governmental grantees shall avoid any action which might result in, or create the appearance of the following:

Using his or her official position for private gain; Giving preferential treatment to any person; Losing complete independence or impartiality;
Making an official decision outside official channels; and/or
Adversely affecting the confidence of the public in the integrity of the government or the program.

10. Consultants: *Billings for consultants who are individuals must include at a minimum: a description of services; dates of services; number of hours for services performed; rate charged for services; and, the total cost of services performed. Individual consultant costs must be within the prevailing rates, not to exceed the maximum of \$450.00 per day.*

11. Continuation: *The applicant agrees that if the requested project is funded, continuation is not guaranteed.*

12. Contract Requirements: *The applicant agrees that no contract or agreement may be entered into by the grantee for execution of project activities or provision for services to a grant project (other than the purchase of supplies or standard commercial or maintenance services) which is not incorporated in the approved application. Any such arrangements will provide that the grantee will retain ultimate control and responsibility for the project and that the contractor will be bound by these conditions as well as the grantee.*

Deobligation of Grant Funds: *All grants must be de-obligated within forty-five (45) calendar days of the end of the grant period. Failure to de-obligate the grant in a timely manner will result in an automatic*

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 4
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

de-obligation of the grant by the Kentucky 911 Services Board.

14. Drug-Free Workplace Certification: *This Certification is required by federal regulations implementing the Federal Drug-Free Workplace Act of 1988. The federal regulations, published in the January 31, 1989, Federal Register, require certification by state agency grantees that they will maintain a drug-free workplace. The certification is a material representation of fact upon which reliance will be placed when the Kentucky 911 Services Board determines to award the grant. False certification or violation of the certification shall be grounds for suspension of payments, suspension or termination of the grant; or government-wide suspension or debarment.*

15. Financial Responsibility: *The financial responsibility of grantees must be such that the grantee can properly discharge the public trust which accompanies the authority to expend public funds. Adequate accounting systems should meet the following criteria:*

Accounting records should provide information needed to adequately identify the receipt of funds under each grant awarded and the expenditure of funds for each grant;

Entries in accounting records should refer to subsidiary records and/or documentation which support the entry and which can be readily located;

The accounting system should provide accurate and current financial reporting information; and,

The accounting system should be integrated with an adequate system of internal controls to safeguard the funds and assets covered, check the accuracy and reliability of accounting data, promote operational efficiency and encourage adherence to prescribed management policies.

16. Fiscal Regulations: *The applicant assures that it will comply and all its contractors will comply, with the provisions of applicable federal and state laws and regulations.*

17. Fraud: *The applicant understands that whoever embezzles, willfully misapplies, steals or obtains by fraud any funds, assets or property which are the subject of a grant or contract or other form of assistance, whether received directly or indirectly from the Kentucky 911 Services Board, will be fined not more than \$10,000 or imprisoned for not more than five years or both. Whoever knowingly falsifies, conceals or covers up by trick, scheme or device, any material fact in any application for assistance or in any record required to be maintained, will be subject to prosecution under the provisions of Section 1001 of Title 18, United States Code. Any program or project underwritten in whole or in part by any grantee, or contract or other form of assistance, whether received directly or indirectly from the Kentucky 911 Services Board will be subject to the provisions of Section 371 of Title 18, United States Code.*

18. Interest and Other Program Income: *The applicant agrees to be accountable for all interest or other income earned by the grantee with respect to grant funds or as a result of conduct of the project (sale of publications, registration fees, service charges, etc.) All program income generated by this grant during the project must be reported to the Kentucky 911 Services Board quarterly and must be put back into the project or be used to reduce the grantor participation in the program. The use or planned use of all program income must have prior written approval from the Kentucky 911 Services Board.*

19. Interoperable Equipment: *Any awards resulting from this application, involving data or voice communication equipment or projects, including data or voice interoperability equipment or projects, shall be presented for review and must be approved by the Kentucky Wireless Interoperability Executive Committee (KWIEC). The KWIEC shall forward the plans to the Chief Information Officer for the Commonwealth Office of Technology (COT) for final approval.*

20. Legal Action: *The applicant agrees that should the Kentucky 911 Services Board or the Kentucky Office of Homeland Security to which it is attached determine that it needs to take legal action against the applicant for actions arising out of the grant, the applicant will waive jurisdiction and consent to jurisdiction*

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 5
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

of the Franklin County Circuit Court.

21. Non-Supplanting Agreement: *The grantee shall not use grantor funds to supplant state or local funds or other resources that would otherwise have been made available for this program. Further, if a position created by a grant is filled from within, the vacancy created by this action must be filled within 30 days. If the vacancy is not filled within 30 days, the grantee must stop charging the grant for the new position. Upon filling the vacancy, the grantee may resume charging for the grant position.*

22. Obligation of Grant Funds: *Grant funds may not be obligated prior to the effective date of the approved grant application and without advance written approval by the Kentucky 911 Services Board. No obligations are allowed after the end of the grant period and the final request for payment must be submitted no later than 45 calendar days after the end of the grant period.*

23. Performance: *This grant may be terminated or fund payments discontinued by the Kentucky 911 Services Board where it finds a substantial failure to comply with the provisions of the legislation governing these funds or regulations promulgated, including those grant conditions or other obligations established by the Kentucky 911 Services Board. In the event the grantee fails to perform the services described herein and has previously received financial assistance from the Kentucky 911 Services Board, the grantee shall reimburse the Board the full amount of the payments made. However, if the services described herein are partially performed, and the grantee has previously received financial assistance, the grantee shall proportionally reimburse the Kentucky 911 Services Board for payments made.*

24. Personnel Costs: *Personnel costs must be consistent with the agency's policies and procedures and must be applied uniformly to both grant financed and other activities of the agency.*

25. Political Activity: *None of the funds, materials, property or services provided directly or indirectly under this contract shall be used for any partisan political activity, or to further the election or defeat of any candidate for public office, or otherwise in violation of the provisions of the "Hatch Act", and/or the provisions of KRS 11A and KRS 45A.*

26. Project Implementation: *The grantee agrees to implement this project within 60 days following the grant award effective date or be subject to automatic cancellation of the grant.*

27. Property Control: *Effective control and accountability must be maintained for all personal property. Grantees must adequately safeguard all such property and must assure that it is used solely for authorized purposes. Grantees should exercise caution in the use, maintenance, protection and preservation of such property.*

Use and Disposition: *Equipment shall be used by the grantee in the program or project for which it was acquired as long as needed, whether or not the program or project continues to be supported by state funds. When use of the property for project activities is discontinued, the grantee shall request, in writing, disposition instructions from the Kentucky 911 Services Board prior to actual disposition of the property. Theft, destruction, or loss of property shall be reported to the Kentucky 911 Services Board immediately.*

28. Procurement: *Procurement of goods and services must comply with all local procurement guidelines, which reflect applicable provisions of KRS 45A or Chapter 424. It is suggested that grantees recipients contact counsel for advice.*

29. Publications: *The grantee agrees that all publications created with funding under this grant agreement shall prominently contain the following statement: "This document was prepared under a grant from the Kentucky 911 Services Board. Points of view or opinions expressed in this document are those of the authors and do not necessarily represent the official position or policies of the Kentucky 911 Services Board or the Kentucky Office of Homeland Security." Additionally, any publication created with*

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 6
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

funding under this agreement shall bear on it the logos of the Kentucky 911 Services Board.

The grantee also agrees that one copy of any such publication will be submitted to the Kentucky 911 Services Board to be placed on file and distributed as appropriate to other potential grantees or interested parties. The Kentucky 911 Services Board may waive the requirement for submission of any specific publication upon submission of a request providing justification from the grantee.

30. Recording and Documentation of Receipts and Expenditures: *Grantee's accounting procedures must provide for accurate and timely recording of receipt of funds by source of expenditures made from such funds and unexpended balances. These records must contain information pertaining to grant awards, obligations, unobligated balances, assets, liabilities, expenditures and program income. Controls must be established which are adequate to ensure that expenditures charged to the grant activities are for allowable purposes. Additionally, effective control and accountability must be maintained for all grant cash, real and personal property and other assets. Accounting records must be supported by such source documentation as cancelled checks, paid bills, payrolls, time and attendance records, contract documents, grant award documents, etc.*

31. Reimbursements: *The applicant understands that all grant funds awarded from the Kentucky 911 Services Board are done so on a reimbursement basis. The grantee must pay accumulated vendor invoices once services are rendered and submit the invoice along with a copy of the cancelled check made out to the vendor to the 911 Services Board for reimbursement. The 911 Services Board agrees to handle requests for grant reimbursements in a timely and efficient manner. Grantees unable to handle the grant on a reimbursement basis due to financial hardship must contact the 911 Services Board as soon as the grant is awarded to make other arrangements.*

32. Reports: *The grantee shall submit, at such times and in such form as may be prescribed, such reports as the Kentucky 911 Services Board may reasonably require, including financial reports, progress reports, final financial reports and evaluation reports.*

33. Retention of Records: *Records for non-expendable property purchased totally or partially with grantor funds must be retained for three years after its final disposition. All other pertinent grant records including financial records, supporting documents and statistical records shall be retained for a minimum of three years after the final expenditure report. However, if any litigation, claim or audit is started before the expiration of the three year period, then records must be retained for three years after the litigation, claim or audit is resolved.*

34. Suspension or Termination of Funding: *The Kentucky 911 Services Board may suspend, in whole or in part, and/or terminate funding for or impose another sanction on a grantee for any of the following reasons:*

Failure to comply substantially with requirements or statutory objectives set forth herein; Failure to adhere to the requirements, standard conditions or special conditions;

Proposing or implementing substantial program changes to the extent that, if originally submitted, the application would not have been approved for funding;

Failure to submit reports;

Filing a false certification in this application or other report or document; Other good cause shown.

If funds are not appropriated to the 911 Services Board or are not otherwise available for the purpose of making payments with incurring any obligation for payment after the date of termination, regardless of the terms of the contract.

The 911 Services Board shall provide the grantee thirty (30) calendar days written notice of termination of the contract.

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74			
	Document Page	Document Description	Page 7
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

35. Travel Costs: *The grantee shall be paid no travel expense unless and except as specifically authorized under the specifications of the grant agreement. Unless otherwise indicated, travel reimbursement shall be in accordance with 200 KAR 2:006. Neither travel time nor travel expenses will be included personnel hourly rates.*

36. Utilization and Payment of Grant Funds: *Funds awarded are to be expended only for purposes and activities covered by the grantees approved project plan and budget. Items must be in the grantee's approved grant budget in order to be eligible for reimbursement.*

37. Utilization of Minority Businesses: *Grantees are encouraged to utilize qualified minority firms where cost and performance of major contract work will not conflict with funding or time schedules.*

38. Written Approval of Changes: *Any mutually agreed upon changes to this grant must be approved, in writing, by the Kentucky 911 Services Board prior to implementation or obligation and shall be incorporated in written amendments to this grant. This procedure for changes to the approved grant is not limited to budgetary changes, but also includes changes of substance in project activities and changes in the project director or key professional personnel identified in the approved application*

202 KAR 6:090. Permitted uses by PSAPs for CMRS funds.

RELATES TO: KRS 65.7621, 65.7627, 65.7629(3)-(9), (13), 65.7631, 65.7635, 65.7639, 65.7643, 9 U.S.C. 1-16, 47 U.S.C. 153(27), 332(d), FCC Order Docket #94-102, 1996 STATUTORY AUTHORITY: KRS 65.7633(2)(c)

NECESSITY, FUNCTION, AND CONFORMITY: KRS 65.7633(2)(c) requires the CMRS Board to promulgate administrative regulations to establish guidelines to be followed by the board in reviewing, evaluating, and approving or disapproving disbursements from the CMRS fund and requests for disbursements under KRS 65.7631(2) and (3). KRS 65.7631(2) restricts the use of funds disbursed solely for the purposes of answering, routing, and properly disposing of CMRS 911 calls, training PSAP staff, public education, and complying with the wireless E911 service requirements established by the FCC. This administrative regulation establishes guidelines to be followed by the board in its review and evaluation of disbursement requests by local 911 centers.

Section 1. Definitions. (1) "AVL" means automatic vehicle location systems used to track emergency responder vehicle.

(2) "CAD" means computer aided dispatch systems used by 911 personnel to allocate and track emergency responder resources during a 911 call.

(3) "EMS" means emergency medical system which includes paramedics, emergency medical technicians and other personnel and equipment used to respond to medical emergencies.

(4) "GIS" means Geographic Information Systems used to create, maintain, and manage graphic location data for use by emergency communications centers.

(5) "LINK/NCIC" means the Law Enforcement Information Network of Kentucky and the National Crime Information Center, two (2) systems commonly used by law enforcement and emergency communications personnel for short messaging between agencies and to request vehicle, driver, and criminal history checks.

(6) "MSAG" means Master Street Address Guide, the database used by 911 centers to determine an emergency call's initial location.

Section 2. Allocation of CMRS Funds. (1) Wireless only costs. CMRS funds may be expended for costs which are solely for the provision of enhanced 911 service involving calls from wireless consumers.

(2) Wireline and wireless-shared costs. Costs for personnel, equipment, or facilities which are necessarily shared by calls to 911 from wireline and wireless users shall be prorated based on the percentage of call traffic attributed to calls from wireless users. CMRS funds may be used only for the

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 8
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

wireless prorated portion.

(3) Multifunction personnel, equipment, or facility shared costs. Expenses for personnel, equipment, or facilities which serve multiple functions or purposes shall be prorated. Only those costs for the prorated wireless portion directly involved in the delivery of 911 service shall be allowed.

Section 3. Allowed 911 Center Operational Expenditures. (1) Personnel costs. Costs for the following employees, to the extent their duties are directly attributable to delivery of 911 service, shall be allowed:

(a) Positions allowed.

1. Director;
2. Supervisor;
3. Dispatcher;
4. Call-taker;
5. Technical staff;
6. Support staff; and
7. Other staff involved in the provision of 911 service.

(b) Costs allowed.

1. Salaries;
2. Fringe benefits;
3. MSAG coordination;
4. Uniforms; and
5. Addressing/database development and management.

(2) Facility costs. Facility costs for the following expenses, to the extent it is directly attributable to delivery of 911 service, shall be allowed:

- (a) Capital improvements for construction, remodeling, or expansion;
- (b) Lease or rental payments;
- (c) Utilities;
- (d) Heating and air conditioning;
- (e) Fire suppression systems;
- (f) Security systems;
- (g) Cleaning and maintenance;
- (h) Emergency power and uninterruptible power equipment;
- (i) Insurance;
- (j) Office supplies;
- (k) Printing and copying services; and
- (l) Furniture.

(3) Training and memberships. Training and memberships in professional associations shall be allowed to the extent they are directly attributable to the enhancement of knowledge, skills and abilities of 911 personnel in the provision of 911 service, including:

- (a) Vendor provided training;
- (b) Conferences;
- (c) Necessary travel and lodging;
- (d) On-the-job training; and
- (e) Memberships in 911 related associations, such as the Association of Public Communications Officials, or the National Emergency Number Association.

(4) Hardware, software, and peripheral equipment. Costs for the following equipment shall be allowed to the extent their function is directly attributable to the provision of 911 service, whether on the premises or remotely located:

- (a) 911 controllers, telephone equipment, or software;
- (b) 911 trunks or administrative lines for the 911 center;
- (c) Remote 911 hardware or modems;
- (d) Automatic call distribution (ACD) systems or other call management facilities and software;
- (e) Call-time stamping or other clock functions;

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 9
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

- (f) Computer workstations;
 - (g) Telephone device for the deaf equipment;
 - (h) Voice and data recording systems;
 - (i) Radio systems, including consoles and infrastructure;
 - (j) CAD, GIS/mapping, paging, mobile data, LINK/NCIC, or AVL systems;
 - (k) Associated databases;
 - (l) Network connectivity;
 - (m) Software licenses; and
 - (n) Maintenance or service agreements for equipment or software listed in paragraphs (a) through (m) of this subsection.
- (5) Vehicle costs. Vehicle costs for the following, either as reimbursement to an employee for the use of a private vehicle or direct costs for a vehicle assigned to the agency, shall be allowed to the extent their use is directly attributable to the provision of 911 service:
- (a) MSAG development and maintenance;
 - (b) GIS verification and testing; and
 - (c) Public education.
- (6) Professional services. Costs for the following professional services shall be allowed to the extent they are directly attributable to the provision of 911 related service:
- (a) Legal;
 - (b) Architectural;
 - (c) Auditing; and
 - (d) Consultation.
- (7) Public education. Costs for public education regarding the proper use of 911 shall be allowed.
- Section 4. Not Allowed 911 Center Operational Expenses. (1) Personnel costs. Personnel costs for the following personnel shall not be allowed, except when directly functioning as 911 center staff:
- (a) Law enforcement;
 - (b) EMS personnel;
 - (c) Fire personnel;
 - (d) Emergency management staff; and
 - (e) Shared support or technical staff.
- (2) Facility costs. Facility costs for the following purposes and facilities shall not be allowed, except for that portion used for 911 operations.
- (a) Capital and furnishing costs for facilities whose primary purpose is other than 911 operations;
 - (b) Facilities primarily intended for use by police, fire, EMS, or other emergency management personnel; and
 - (c) Facilities providing general offices for county or municipal government operations.
- (3) Training and memberships.
- (a) Costs for training for staff not directly involved in the delivery of 911 services or courses whose content is not intended to increase of the knowledge, skills, and abilities of 911 personnel in regard to delivery of 911 service shall not be allowed.
 - (b) Costs for memberships in organizations or associations whose primary purpose is other than public safety communications or 911 issues shall not be allowed.
- (4) Hardware, software, and peripheral equipment. The following hardware, software, or peripheral equipment costs, unless directly attributable to the delivery of 911 service shall not be allowed:
- (a) Law enforcement, fire, EMS, or jail record management systems;
 - (b) Word processing, databases, and other general computer applications;
 - (c) GIS applications providing data layers not needed for the location of emergency calls or other general mapping and location services for government operations;
 - (d) Court information systems;
 - (e) Field equipment used outside of the 911 center by emergency responders or other government personnel for radio, paging, mobile data, LINK/NCIC, CAD, or AVL systems;
 - (f) Connectivity for an application listed in paragraphs (a) to (e) of this subsection;

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 10
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

- (g) A maintenance or service agreement for an application listed in paragraphs (a) to (e) of this subsection; and
- (h) Software license for an application listed in paragraphs (a) to (e) of this subsection.

(5) Vehicle costs. The cost of an emergency response or other government vehicle not directly attributable to the delivery of 911 service shall not be allowed.

(6) Professional services. Costs for professional services not directly attributable to the delivery of 911 service shall not be allowed.

(7) Public education. Costs for public education not directly attributable to the delivery of 911 service shall not be allowed. (29 Ky.R. 1160; Am. 1524; eff. 12-18-02; TAm eff. 8-31-2007.)

Document Phase		Document Description	Page 11
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

DRAFT

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 12
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

Memorandum of Agreement Standard Terms and Conditions

Revised July 2026

1.00 Effective Date

All Memorandum of Agreements are not effective until the Secretary of the Finance and Administration Cabinet or his authorized designee has approved the agreement and until the agreement has been submitted to the government contract review committee. However, in accordance with KRS 45A.700, memoranda of agreement in aggregate amounts of \$50,000 or less are exempt from review by the committee and need only be filed with the committee within 30 days of their effective date for informational purposes.

KRS 45A.695(7) provides that payments on personal service contracts and memoranda of agreement shall not be authorized for services rendered after government contract review committee disapproval, unless the decision of the committee is overridden by the Secretary of the Finance and Administration Cabinet or agency head if the agency has been granted delegation authority by the Secretary.

The Commonwealth will make payment within thirty (30) working days of receipt of contractor and/or subrecipient's invoice or of acceptance of goods and/or services in accordance with KRS 45.453 and KRS 45.454.

Payments are predicated upon successful completion and acceptance of the described work, services, supplies, or commodities, and delivery of the required documentation. Invoices for payment shall be submitted to the agency contact person or its representative.

2.00 Cancellation Clause

Both parties shall have the right to terminate and cancel this contract at any time not to exceed thirty (30) days' written notice served on the Contractor and/or subrecipient by registered or certified mail.

3.00 Funding Out Provision

The state agency may terminate this agreement if funds are not appropriated to the contracting agency or are not otherwise available for the purpose of making payments without incurring any obligation for payment after the date of termination, regardless of the terms of the agreement. The state agency shall provide the Contractor and/or subrecipient thirty (30) calendar day's written notice of termination of the agreement due to lack of available funding.

4.00 Reduction in Contract Worker Hours

The Kentucky General Assembly may allow for a reduction in contract worker hours in conjunction with a budget balancing measure for some professional and non-professional service contracts.

If under such authority the agency is required by Executive Order or otherwise to reduce contract hours, the agreement will be reduced by the amount specified in that document. If the contract funding is reduced, then the scope of work related to the contract may also be reduced

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 13
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

commensurate with the reduction in funding. This reduction of the scope shall be agreeable to both parties and shall not be considered a breach of contract.

5.00 Access to Records

The state agency certifies that it is in compliance with the provisions of KRS 45A.150, "Access to contractor and/or subrecipient's books, documents, papers, records, or other evidence directly pertinent to the contract." The Contractor and/or subrecipient, as defined in KRS 45A.030, agrees that the contracting agency, the Finance and Administration Cabinet, the Auditor of Public Accounts, and the Legislative Research Commission, or their duly authorized representatives, shall have access to any books, documents, papers, records, or other evidence, which are directly pertinent to this agreement for the purpose of financial audit or program review. The Contractor and/or subrecipient also recognizes that any books, documents, papers, records, or other evidence, received during a financial audit or program review shall be subject to the Kentucky Open Records Act, KRS 61.870 to 61.884. Records and other prequalification information confidentially disclosed as part of the bid process shall not be deemed as directly pertinent to the agreement and shall be exempt from disclosure as provided in KRS 61.878(1)(c).

6.00 Violation of tax and employment laws

KRS 45A.485 requires the Contractor and/or subrecipient and all subcontractors performing work under the contract to reveal to the Commonwealth any final determination of a violation by the Contractor and/or subrecipient within the previous five (5) year period of the provisions of KRS chapters 136, 139, 141, 337, 338, 341, and 342. These statutes relate to corporate and utility tax, sales and use tax, income tax, wages and hours laws, occupational safety and health laws, unemployment insurance laws, and workers compensation insurance laws, respectively. Disclosure of any violations is required prior to the award of any state contract and throughout the duration of the contract.

Failure to disclose violations shall be grounds for the Commonwealth's disqualification of a contractor and/or subrecipient or subcontractor from eligibility for future state contracts for a period of two (2) years.

To comply with KRS 45A.485, the Contractor and/or subrecipient and all subcontractors performing work under this contract shall report any such final determination(s) of any violation(s) within the previous five (5) years to the Commonwealth by providing a list of the following information regarding any violation(s): (1) specific KRS violated, (2) date of any final determination of a violation, and (3) state agency which issued the final determination.

A list of any disclosures made prior to award of a contract shall be attached to the contract. The Contractor and/or subrecipient affirms that it has not violated any of the provisions of the above statutes within the previous five (5) year period, aside from violations explicitly disclosed and attached to this contract. Contractor and/or subrecipient further affirms that it will (1) communicate the above KRS 45A.485 disclosure requirements to any subcontractors and (2) disclose any subcontractor violations it becomes aware of to the Commonwealth.

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 14
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

7.00 Nondiscrimination

The Equal Employment Opportunity Act of 1978 (the “Act”), KRS 45.560 to 45.640, applies to all State government contracts or subcontracts in an amount exceeding \$500,000. The contractor and/or subrecipient shall comply with all terms and conditions of the Act.

During the performance of this contract, the Contractor and/or subrecipient agrees as follows:

- (a) The Contractor and/or subrecipient shall not discriminate against any employee or applicant for employment because of race, color, religion, sex, age forty (40) and over, disability, veteran status, or national origin or.
- (b) The Contractor and/or subrecipient shall take affirmative action in regard to employment, upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination rates of pay or other forms of compensation, and selection for training, so as to ensure that applicants are employed and that employees are treated during employment without regard to their race, color, religion, sex, age forty (40) and over, disability, veteran status, and national origin.
- (c) The Contractor and/or subrecipient shall state in all solicitations or advertisements for employees placed by or on behalf of the Contractor and/or subrecipient that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex, age forty (40) and over, disability, veteran status, or national origin.
- (d) The Contractor and/or subrecipient shall post notices in conspicuous places, available to employees and applicants for employment, setting forth the provisions of this non-discrimination clause.

The Contractor and/or subrecipient shall send a notice to each labor union or representative of workers with which he/she has a collective bargaining agreement or other contract or understanding advising the said labor union or workers' representative of the Contractor and/or subrecipient's commitments under this nondiscrimination clause.

The Contractor and/or subrecipient's noncompliance with the nondiscrimination clauses of this contract shall constitute a material breach of the contract.

Each Contractor and/or subrecipient shall, for the length of the contract or at the point at which the contract is covered by this Act and until its conclusion, furnish such information as required by the Act and any rules, regulations and orders issued pursuant thereto and permit access to all books and records pertaining to his employment practices and work sites by the contracting agency and the Cabinet to ascertain compliance with the Act.

This section applies to agreements disbursing federal funds, in whole or part, only when the terms for receiving those funds mandate its inclusion.

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 15
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

8.0 Artificial Intelligence (AI)

Vendor agrees to adhere to [CIO-126 Artificial Intelligence Policy.pdf](#), which includes but is not limited to, the required written disclosure, in advance, of every use of generative AI and/or integrations with generative AI system. Vendor agrees to disclose all parts of contracted work that is expected to be or will be performed with the assistance of AI. Further, Vendor understands and agrees to take appropriate measures to ensure Generative AI shall not be used for any activities that are illegal or in violation of state policy, COT policy, or agency policy per CIO-126. Vendors may not use Commonwealth confidential or internal data in generative AI queries or for building or training proprietary generative AI programs unless explicitly approved in writing by the agency head with consultation from the COT Chief Information Officer. Vendor agrees to provide reasonable written notice of any issue of noncompliance with these requirements.

9.0 Payment

The Commonwealth will make payment within thirty (30) working days of receipt of Contractor's invoice and of acceptance of goods and/or services except when the agency has transmitted a rejection notice to the vendor in accordance with KRS 45.453 and KRS 45.454. For the purpose of this provision, a working day is any weekday except for Commonwealth employee holidays up to the agency close of business. The Commonwealth may make a partial payment of goods or services that it has received according to the terms of the contract.

Payments are predicated upon agreed upon payment milestones set forth in the agreement and/or successful completion and acceptance of the described work, services, supplies, or commodities, and delivery of the required documentation. Invoices for payment shall be submitted to the agency contact person or agency representative and, except Personal Service Contract invoices, shall include the following information, as applicable:

- (1) Contract and/or delivery order number;
- (2) Name of Contractor Entity or Individual;
- (3) Contractor designated point of contact;
- (4) Unique Invoice Number;
- (5) Invoice Date;
- (6) Item numbers;
- (7) Descriptions of goods or services provided;
- (8) Sizes of goods provided;
- (9) Quantities provided;
- (10) Unit prices; and
- (11) Extended totals (unit price x quantity) for invoiced line items.

For Personal Service Contracts, invoices must be submitted on the Personal Service Contract Invoice form established by the Government Contract Review Committee, available at:

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 16
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

<https://apps.legislature.ky.gov/moreinfo/contracts/PSC%20INVOICE%20FORM.pdf>

The Commonwealth will make a good faith effort to notify the Contractor within fifteen (15) working days of the Contractor's failure to submit a proper invoice or a dispute of the goods or services provided. The Contractor shall address the Commonwealth's concerns within ten (10) calendar days and resubmit a corrected invoice with a new invoice number for payment. If the Contractor has not rectified the problem with the invoice or the good or service within the ten (10) calendar day correction period, any revised submitted invoice shall be considered a new invoice with a new date of submission for calculation of any late payment penalty.

If the Commonwealth has not notified the Contractor of any issue with the invoice or the goods and/or services and the Contractor has not received payment by the twenty-fifth (25th) business day after the Contractor submitted the invoice, the Contractor should notify its Commonwealth contract representative that its invoice is still pending payment.

Except as otherwise explicitly provided in the contract, payments shall be issued to the Contractor within thirty (30) working days of receipt of Contractor's invoice and of acceptance of goods and/or services. In the event of an invoice payment dispute between the Contractor and purchasing agency, the Contractor shall first attempt resolution of the dispute via submission to the purchasing agency in accordance with the payment dispute process posted on the Finance and Administration Cabinet website, located at:

<https://finance.ky.gov/office-of-the-secretary/office-of-general-counsel/Pages/procurement-and-protest-resources.aspx>

If submission to the purchasing agency fails to resolve the payment dispute, the Contractor may submit a contract dispute regarding payment to the Finance Secretary for resolution. In accordance with KRS 45.454, and except as provided by KRS 371.405, there shall be payable to the Contractor a penalty of one-percent (1%) on any undisputed amount each month or fraction thereof owing to the Contractor after 30 working days following the receipt of the goods or services and receipt of the invoice unless otherwise agreed between the Commonwealth and the Contractor. After a resolution is determined, the purchasing agency shall begin to assess penalties due the Contractor and remit the penalty payment to the Contractor within five (5) working days.

DocuSign Envelope ID: 4E3C6168-6E97-8DD1-812A-1A15549A5B74		Document Description	Page 17
2700000420	Draft	Oldham County Fiscal Court Project 27-225	Total Pages: 17

Second Party:

Signature

Title

Printed Name

Date

First Party:

Signature

KOHS Executive Director

Title

Amy S. Hess

Printed Name

Date

KY Finance Cabinet:

Signed by:
Cary Bishop

Approved as to Form and Legality

8/10/2026

Date